

| #   | Case Name                                                                                     | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
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| 50. |                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 51. | <p>Bat Nha Mediation Institute of the United States of America v. Do</p> <p>2024-01391930</p> | <p>Third party Scott Bergmann's motions for leave to intervene and expunge lis pendens are GRANTED. The lis pendens recorded against real property located at 2482 Griffin Way, Corona, California is EXPUNGED.</p> <p>The requests for judicial notice are GRANTED.</p> <p>Code of Civil Procedure section 405.30 explicitly permits "any party, or any nonparty with an interest in the real property affected thereby" to apply to the court to expunge a lis pendens. However, the statute imposes a critical procedural requirement: "a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice." This intervention requirement ensures that the third party becomes a proper party to the proceedings before seeking relief.</p> <p>A property owner whose property has been mistakenly encumbered by a lis pendens clearly has an interest in the real property, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged."</p> <p><i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4<sup>th</sup> 1003.</p> <p>Once intervention is granted, the third party has strong grounds for expungement. Code of Civil Procedure section 405.31 mandates that "the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." A "real property claim" is defined as "the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property." Ca. Civ. Pro. Section 405.4. Where, as here, the underlying litigation does not involve the third party's property at all—meaning the property was recorded on accidentally—then the pleading contains no real property claim as to that property.</p> <p>Pursuant to C.C.P. § 405.38, the court orders plaintiff to pay intervenor Bergmann \$1870 in attorney's fees and costs in pursuing this matter with the court. Plaintiff shall make payment to intervenor through counsel of record within 30 days of notice of this ruling.</p> <p>Bergmann shall give notice of this ruling.</p> |

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| 52. | <p>Castro v. Cies Family Trust</p> <p>2023-01322100</p> | <p>Defendant Coldwell Banker Realty's Motion for Undertaking is DENIED as it has been dismissed from this action with prejudice. (See ROA 340)</p> <p>Defendant The Cies Family Trust's Joinder in the Motion is also DENIED.</p> <p>Pursuant to Code of Civil Procedure § 1030, Defendant Coldwell Banker Realty initially moved for order requiring Plaintiff to post an undertaking in the amount of \$69,135.87. The motion was joined by defendant The Cies Family Trust ("CFT"). CFT seeks an undertaking in the amount of \$90,000.</p> <p>Under Section 1030(a), an undertaking must be in an amount sufficient as security for "costs and attorney's fees which may be awarded in the action."</p> <p>Here, CFT has provided no persuasive evidence for the \$90,000 undertaking it seeks. CFT's counsel states it has incurred approximately \$3,793.60 in costs, but does not provide a sufficient basis for the additional \$86,000+ in costs it seeks. Therefore, even assuming CFT has met all the statutory requirements of Section 1030(a), the Court has no basis to require Plaintiff to post a \$90,000 undertaking.</p> <p>Additionally, in the opposition, Plaintiff has created a factual dispute regarding Defendant's knowledge of a water leak which sufficiently challenges whether there is a reasonable possibility that Defendant will prevail. On reply CFT argues for the first time that Plaintiff failed to name Leslie Cies and Dr. Cies as trustees of the Cies Family Trust, as a trust is not a separate legal entity capable of being sued. It requests the Court to consider this issue in ruling on the motion.</p> <p>"It is elementary that points raised for the first time in a reply brief are not considered by the court." (<i>Levin v. Ligon</i> (2006) 140 Cal.App.4th 1456, 1486.) Because CFT failed to raise this issue in its Joinder, the Court will not consider the argument.</p> <p>For the foregoing reasons, the motion is also DENIED as to defendant CFT.</p> <p>Defendant The Cies Family Trust shall give notice of this ruling.</p> |
| 53. | <p>Daichendt v. Aviation Consultants, Inc.</p>          | <p><b><u>Defendants Aviation Consultants, Inc., William Borgsmiller, Freeman Holdings of CenCA LLC and Nathan Ross' Motion to Strike Portions of the Fifth Amended Complaint</u></b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |